

INTELLECTUAL PROPERTY

Intellectual Property (IP) refer to all intangible creations of the mind such as inventions, designs, artistic and literary work, symbols, images and names that can be used for commercial gain.

They are categorized as **patents**, **copyrights**, **trademarks** and **trade secrets**.

Under intellectual property law, the holder of one of these abstract properties has certain exclusive rights to the creative work, invention or commercial symbol by which it is covered.

Intellectual property rights are the rights given to persons over the creations of their minds. They usually give the creator an exclusive right over the use of his/her creation for a certain period of time.

Intellectual Property affords people the rights to own their creativity and innovation, just as they would own physical property. The owner of IP can control and receive reward for its use, thus encouraging further innovation and creativity for the benefit of society.

Forms of intellectual property

- a. Patent
- b. Trade mark
- c. Copyrights
- d. Trade secrets

a) A patent

A **patent** is an exclusive **right** granted for an invention. In other words, **patent** protection means that the invention cannot be commercially made, used, distributed, imported, or sold by others without the **patent** owner's consent. A patent is a grant of property right by the government to an inventor. It is issued through the commissioner of patent rights, and the most common type of patent is called a utility patent. All patents however, have the distinction of being assets with a commercial value because they provide exclusive rights of ownership to the patent holders.

Patents are exclusive property rights that can be sold, transferred, or used as collateral much like other valuable assets.

The patent law stipulates broad categories of what can and cannot be patented and in the words of the statute any person who “invents or discovers any new and useful process, machine manufacture, or composition of matter, or any new and useful improvements thereof may obtain a patent”

Anything that is patentable must be new and useful (must have some demonstrated function)

The Nature of Patentable Inventions

The terms used give classification of patentable

1. **Process** – The word process as used in patents refers to new methods of manufacturing or new technological procedures that can be validated as unique.
2. **Machine** – In patent law means that the patent application for a specific physical item.
3. **Manufacture**- refers to physical items that have fabricated through new combinations of materials or technical applications.

The application must explain how the product is made including materials, processes etc.

4. **Composition of Matter**- this category in patent law relates to the chemical compounds such as synthetic materials, medicine, cosmetics etc

Types of Patents

Patent law provides for three categories of patents namely

1. Utility patent
2. Design patent
3. Plant patent.

1. The utility patent

utility patent is granted for new products processes, machines, methods of manufacturing and composition of matter. This category excludes, most botanical creations related to plant and agricultural use.

2. The design patents

Are granted for any new or original ornamental design for an article of manufacture. A design patent protects the appearance of an article and not the article itself.

3. The plant patents

In botanical terms any, new variety of plant that have been asexually reproduced can be granted a plant patent. The new plant must not exist in nature or in an uncultivated state. Therefore, new plants hybrids and seedlings may be patented.

Disclosures

The patent office provides an important service of limited protection through the invention disclosure programme

As a first step in seeking protection form the disclosure statement – the aim is to register an idea with the government.

The investor explains what the item is, that it is new and useful and how it is to be used copy is given or photograph.

This gives the investors protection as evidence of any legal tussel, or conflicting claims giving the investor priority.

The Patent Procedures

i) The disclosure

When an idea is first reduced to sketches on paper or when it is mocked up, a disclosure should be filed.

This is a measure of insurance that precedes the actual patent and provides legal recognition for all aspiring inventors.

If someone took the sketches or steals the idea, evidence is on record.

ii) The patent sketch

A patent sketch is required to determine whether an inventor's creation already exists and remains actively protected under the law.

iii) **The preliminary section**

The preliminary search scans the patent summaries for prior claims or invention. Records are accessed to make judgments and diligent decisions are made.

iv) **Collecting search documents**

The application is collected and the approved documents for further processing.

v) **Making the patent application**

A formal application is now made at the search and is sent to the commissioner of patents and trade market

- o A description of the item
- o A set of drawings
- o A formal oath or declaration
- o Payment of patent filing ideas

b) Trademarks

Trademarks include any word, name, symbol or distinguishing device or any combination thereof adopted and used by a manufacturer or merchant to identify his goods and distinguish them from those manufactured or sold by others.

Trade-marks can be names used in commerce such as KQ it can be a symbol or any distinguishing device artistic in nature.

An important qualification for a trademark is that mark, name etc. must be used commercially.

Service mark Is similar to a trademark and can be registered in the same way with the same protection. A service mark can be a name, wording used in advertising symbols or artistic figures that create a distinctive service concept.

c) Copyrights

Copyright is a legal means of protecting an author's work. It is a type of **intellectual property** that provides exclusive publication, distribution, and usage rights for the author.

Many different types of content can be protected by **copyright**. Examples include books, poems, plays, songs, films, and artwork.

Copyrights are similar to patents in establishing ownership and protection for creative ideas but they pertain to the intellectual property

d) Trade Secrets

Are proprietary information used in the course of business to gain an advantage in manufacturing or commercialization of products or services.

o Modern communications systems contain so much information which if not guarded, the business may collapse.

o Employees leaving may disseminate information to competitors.

Trade Secrets In certain instances the entrepreneur may prefer to maintain an idea or process as confidential, and eventually sell or license it as a trade secret.

The trade secret will have a life as long as the idea or process remains secret.

A trade secret is not covered by any law but is recognized under a governing body.

Employees involved in working with an idea or process may be asked to first sign a confidential information agreement that will protect against their giving out the trade secret either while as employees or when leaving the organization – this is called trade secret non-disclosure agreement.

Most entrepreneurs have limited resources so they choose not to find means of protecting their ideas or products or services.

Steps to be taken in order to maintain Secrecy in an Organization

1. Train employees to refer sensitive questions to designated personnel
2. Provide proper security measures such as escorts to all visitors
3. Avoid discussing business ideas in public places
4. Keep important travel plans secret.
5. Control information that might be presented by employees at conferences or published journals
6. Use simple security measures such as lockable file cabinets, passwords on computers, shredders etc.

7. Have employees and consultants sign non-disclosure agreements.
8. Debrief departing employees on any confidential information.
9. Avoid faxing any sensitive information
10. Mark documents confidential when needed.

Intellectual property Licensing

Licensing may be defined as an agreement between two parties, where one party has proprietary rights over some information, process or technology protected by a patent, trademark or copyright. This arrangement specified in a contract requires the licensee to pay royalty or some other specified sum to the holder of the proprietary rights in return for permission to copy the patent, trademark or copyright.

Licensing has significance as a marketing strategy to holders of patents, trademarks or copyrights to grow their business in a new market when they lack resources or experiences in such markets. It is also an important marketing strategy for entrepreneurs who wish to start a new venture but need permission to a copy or incorporate the patent trademark or copyright with the ideas.

Functions of Kenya intellectual property institute

1. Administer intellectual property rights
2. Provide technological information to the public
3. Provide inventiveness and innovativeness in Kenya
4. Provide training on intellectual property